

Part 3

Minor Works Contractors Registration Committee

6. Establishment of Minor Works Contractors Registration Committee

- (1) The Building Authority must establish a panel from which the Authority is to appoint committees to be known as the Minor Works Contractors Registration Committees.
- (2) There may be more than one Registration Committee in action at any one time.

7. Composition of Minor Works Contractors Registration Committee

- (1) A Registration Committee must consist of the following members—
 - (a) 1 person nominated by the Building Authority who, in the opinion of the Authority, has knowledge and experience in minor works; (*L.N. 113 of 2009*)
 - (b) 1 authorized person or registered structural engineer selected by the Building Authority from among persons nominated by the Architects Registration Board, the Engineers Registration Board or the Surveyors Registration Board; and
 - (c) 1 person selected by the Building Authority from among persons nominated by such bodies as the Authority thinks fit.
- (2) A person who is a member of the following panel is not eligible for appointment to the Registration Committee—

- (a) the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel appointed under section 5A of the Ordinance; or
 - (b) the Registered Contractors' Disciplinary Board Panel appointed under section 11A of the Ordinance.
- (3) The members of the Registration Committee must elect from among themselves a member to act as the chairperson of the Committee.
- (4) The Building Authority must appoint an officer of the Buildings Department as the secretary of the Registration Committee.
- (5) The secretary of the Registration Committee is not a member of the Committee.

8. Function of Minor Works Contractors Registration Committee

The function of a Registration Committee is to assist the Building Authority in considering applications under Parts 4 and 10 by— (*L.N. 113 of 2009*)

- (a) examining the qualifications of the applicants;
- (b) making necessary inquiry to ascertain whether the applicants have the experience required of them for the purposes of their applications;
- (c) conducting interviews with the applicants;
- (d) making recommendations to the Authority to allow or refuse, either in whole or in part, the applications or defer the determination of the applications; and
- (e) reviewing the decisions of the Authority or recommendations of other Registration Committees under section 26. (*L.N. 113 of 2009*)

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9. Meeting of Minor Works Contractors Registration Committee

- (1) A Registration Committee is to meet as often as the Building Authority directs.
 - (2) No meeting of the Registration Committee may proceed in the absence of any of its members.
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